

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL APPELLATE JURISDICTION)

Mamnoon Rahman,J:

This appeal is directed against the judgment and order dated 30.07.2017 passed by the Joint District Judge, 2nd Court, Lakshmipur in Pre-emption Miscellaneous Case No. 03 of 2010 dismissing the pre-emption case.

The short facts relevant for the disposal of the appeal, is that, the appellant as pre-emptor instituted Miscellaneous Case for pre-emption being No. 3 of 2010 in the court of Joint District Judge, 2nd Court, Lakshmipur impleading the respondent as opposite parties. The case of the appellant-petitioner, is that, the case property was recorded correctly in the name of Ashraf Ali Patwary so far it relates to 7.64 decimals of land in Khatian No. 150/03. After the death of Ashraf Ali Patwary his three sons and wife become the owners. After the death of Bodiuzzaman his two sons and two daughters become the owner by way of inheritance. By this way the petitioners are the co-sharer of the case property by way of inheritance as well as purchased by different Kabalas. The opposite party No. 2 on 30.04.2010 sold the case property to opposite party No. 1 who is the stranger. The transaction was done without the knowledge of the petitioner as well as without any notice thereof. Hence, the case.

The respondent-opposite party contested the case by filing written objection denying all the materials allegation made in the miscellaneous petition. The statement made in the application are false and not corroborated to any facts and not anyway as much as the application under section 96 is not at all maintainable. However, the opposite party admitted the ownership of Ashraf Ali Patwary as the owner and after his death Lutfor Rahman and others. Subsequently, they sold the property to Kazi Khairullah who mutated his name and subsequently transferred the same to one Nargis by Heba who also made some Heba to others and from them the opposite party purchased the same since there is a separation of holding or sub-division as such there is no scope to allow any application for pre-emption.

The trial court proceeded with the case and framed as many as five issues. The petitioner adduced one witness and also adduced documentary evidence which were duly marked as Exhibits 1-4. The opposite party respondent also adduced two oral evidences as well as documentary evidences which were duly marked as Exhibits ka(2) and ga(2). The trial court after hearing the parties and considering the facts and circumstances vide impugned judgment and order dismissed the miscellaneous case. Being aggrieved and highly dissatisfied with the aforesaid judgment and order the appellant moved before this court by way of instant appeal.

Mr. Md. Nazmul Karim, the learned counsel appearing on behalf of the appellant submits that the court below without applying its

judicial mind and without considering the facts and circumstances most illegally and in an arbitrary manner passed the impugned judgment and order which requires interference by this court. He submits that the court below erred in law as well as factual aspects in determining the question of pre-emption in the present case in hand resulting error of law as well as facts which requires interference by this court. He further submits that in the present case in hand though the trial court came to a conclusion that the second deed is partly barred by limitation but there is no scope to declare such partial limitation which also requires interference by this court. He further submits that the main question in the present case in hand whether there was any separation of holding or sub-division of holding in the eye of law or not and admittedly in the present case in hand there may be separation of Joma but there was no separation of holding or sub-division in any circumstances. In this connection he referred the decisions reported in 1 BCL(AD) 85.

Mr. Sherder Abul Hossain, the learned counsel appearing on behalf of the respondent-opposite party vehemently opposes the appeal. He submits that the court below on proper appreciation of the facts and circumstances evidence materials on record has rightly come to a conclusion about the fate of the pre-emption case and has rightly dismissed the same which requires no interference by this court. The learned counsel placed the impugned judgment and order and submits that the trial court categorically found that the case is barred by limitation and by a detailed discussion came to a conclusion that since

the case property was separated namely the holding was separated there is no scope to admit the claim of the petitioner as co-sharer as because of the separation. He further submits that the court below relying upon the decisions of this court as well as our apex has rightly strike down the same.

We have perused the impugned judgment and order, memorandum of appeal, grounds taken thereon as well as necessary papers and documents annexed herewith. We have heard the learned counsels for the contesting parties, perused the decisions as referred to as well as the provisions of law.

On perusal of the same, it transpires that admittedly the suit property was originally belonged to one Ashraf Ali Patwary and subsequently his heirs by way inheritance. It further transpires that since some of the property was sold from the said jote to the pre-emptee-opposite party No. 1 by pre-emptee-opposite party No. 2. The present petitioner-appellant pressed the right of pre-emption in a miscellaneous case before the trial claiming himself as co-sharer of the case property by way of inheritance and purchase. There is no denial by both the parties regarding the ownership or title and chain of the case property in question. It further transpires that the trial court framed as many as five issues and after considering the evidence of both oral and documentary adduced by both the parties the trial court came to a conclusion on two counts, namely question of limitation and question of separation of joma and dismissed the said case.

On meticulous perusal of the Issue No. 1 as decided by the trial court it transpires that the trial court held as follows;

অপরদিকে প্রার্থীপক্ষের প্রিন্স কৌশলী তার প্রত্যুত্তরে বলেন প্রতিপক্ষ তাদের আপত্তির কোথাও তামাদিতে প্রারিতের বিষয়টি উল্লেখ করেননি। সার্বিক নথি দৃষ্টে ইহা প্রতীয়মান হয় যে, প্রার্থীপক্ষের দাখী মতে প্রিরোধীয় ২৬৫৬ ও ২৬৬০ নং দলিলের বিষয়ে তিনি সহিমুহুরী নকল পেয়ে ২১/০৪/১০ ও ৩০/০৬/১০ ইং তারিখ সঠিকভাবে অগত হন।

The trial court further held as follows;

প্রার্থী মামলা দায়ের করেন প্রিগত ০৫/০৮/১০ ইং তারিখ সেই হিসেবে প্রিগত ৩০/০৬/১০ ইং তারিখের দলিল বিষয়ে মামলার সময়সীমা সঠিক থাকলেও দেখা যায় যে ২১/০৪/১০ তারিখের দলিলের বিষয়ে তিনি নির্দিষ্ট তামাদি সময়ের মধ্যে মামলা আনয়ন করেন নাই। যেহেতু তিনি ০২ টি দলিল নিয়ে ০১ টি মামলা করে। অতএব দেখা যাচ্ছে দ্বিতীয় দলিল বিষয়ে অত্র মামলায় আংশিক তামাদিতে প্রারিত।

So, it transpires that the trial court came to a conclusion that the case was filed within time but there is partial delay which is not at all accepted in the eye of law when the trial court came to a conclusion about the knowledge and other aspects as such the finding is not at all in the eye of law.

It transpires that while adjudicating the question of defect of party the trial court came to a conclusion in favour of the petitioner-appellant also the question of stopple and waiver was decided in favour of the opposite party-respondent. The main question in the present case

in hand regarding the question of separation of the holding or sub-division. In the present case in hand, it transpires that while adjudicating the case in hand the trial court relied upon the decision reported in 33DLR(AD) 323 wherein their lordships of our apex court came to a conclusion if there is any attempt of separation or split up and no notice was served upon the co-sharer and mutation having been affected behind their back the co-sharer have not lost their right of pre-emption. Also in the case reported in 35 DLR 338 as referred by the trial court though the right of co-sharer was taken away the court of law competent to see the split up order in accordance with law. In the present case in hand when the petitioner raises the question of separation behind their back and also not in accordance with law. It is the duty of the opposite party-respondent to prove the same as burdens upon them to show that there was separation not only joma but holding/sub-division as much as the entire proceeding was done with the service of notice and there was no lacuna in the process. In the present case in hand it transpires that no such attempt was made to show that the respondent-opposite party put any effort to same as per the decisions as cited by the trial court. In the case of Md. Atiqur Rahman Chowdhury and others-Vs-M/S Marshu Ltd. And others reported in 1 BCL(AD) 85 their lordships of our apex court came to a conclusion held as follows;

Separation of jama and separation of holding or sub-division of holding is not the same thing, but as it appears,

both the Courts below fell into an error in treating the separation of jama as separation of holding or sub-division of holding.

The case as made out by the pre-emptor in its pre-emption application was that after purchasing the land from the case holding, he mutated his name only for the convenience of payment of rent. The process of separation or sub-division of holding is altogether a different thing and it shall have to be done only after observing the procedure as laid down in section 117(c) of the Act, 1950, but in the instant case, no process was initiated under the said section. The pre-emptees also failed to produce any paper and order of the revenue authority in that respect. The certified copy of the mutation proceedings initiated on the application filed by the pre-emptor company through its Managing Director before the concerned Revenue Officer (Circle Officer, Revenue, Daudkandi, Comilla) which has been included in the paper book shows that after purchase of the land in the case holding, the application was filed to the Tahsildar, Daudkandi for mutation of the name of the pre-emptor company only for the convenience of the application to the Circle Officer (Revenue) Daudkandi, Comilla with the following comments:

*"দরখাস্তকারী খরিদ সূত্রে মালিক ও দখলকার থাকিয়া
খাজনা আদায়ের সুবিধার্থে পৃথক খারিজের প্রার্থনা
করিয়েছে।*

অতএব প্রার্থনা মতে খারিজ দেওয়া যাইতে পারে।"

It further appears that on the basis of the comments of the Tahsildar, Daudkandi Tahsil Office, the Circle Officer (Revenue), Daudkandi, allowed the prayer of the pre-

emptor and eventually, the pre-emptor's name was mutated. And accordingly, the pre-emptor started paying rents separately. So factually and legally, there was no separation or sub-division of the case holding but separation of jama only to pay the rent. But both the learned Senior Assistant Judge and the learned Additional District Judge without considering the relevant provisions of law and the mutation proceedings initiated by the concerned Tahsilder and the order of the Circle Officer (Revenue), Daudkandi treated the separation of jama as separation of the case holding and held erroneously that there was separation or sub division of the case holding and thus the pre-emptor ceased to be a co-sharer in the case holding and therefore, it was not entitled to pray for pre-emption of the case land as a co sharer in the case holding. However, both the Courts below found that the pre-emptor was a contiguous land owner to the case land.

So, it transpires that simple separation of joma by only for paying rent is not sufficient to take away the right of a person claiming pre-emption as a co-sharer in the case property. It can only be taken away by separation of holding or sub-division of holding by full procedure exhausted in accordance with law which is very much absent in the case in hand. As such, we find substance in the instant appeal which is required to be allowed.

Accordingly, the instant appeal is allowed. The impugned judgment and order passed by the court below is hereby set aside.

The office is directed to communicate the judgment and order with a copy of the judgment to the concerned court below at once.

(Mamnoon Rahman, J:)

I agree

(Ashish Ranjan Das, J:)

Emdad.B.O.